



Australian Capital Territory Government Service (Consequential Provisions) Act 1994

No. 92, 1994

Compilation No. 6

Compilation date:	18 October 2023
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Prepared by the Office of Parliamentary Counsel, Canberra

About this compilation

This compilation

This is a compilation of the *Australian Capital Territory Government Service (Consequential Provisions) Act 1994* that shows the text of the law as amended and in force on 18 October 2023 (the **compilation date**).

The notes at the end of this compilation (the **endnotes**) include information about amending laws and the amendment history of provisions of the compiled law.

Uncommenced amendments

The effect of uncommenced amendments is not shown in the text of the compiled law. Any uncommenced amendments affecting the law are accessible on the Register (www.legislation.gov.au). The details of amendments made up to, but not commenced at, the compilation date are underlined in the endnotes. For more information on any uncommenced amendments, see the Register for the compiled law.

Application, saving and transitional provisions for provisions and amendments

If the operation of a provision or amendment of the compiled law is affected by an application, saving or transitional provision that is not included in this compilation, details are included in the endnotes.

Editorial changes

For more information about any editorial changes made in this compilation, see the endnotes.

Modifications

If the compiled law is modified by another law, the compiled law operates as modified but the modification does not amend the text of the law. Accordingly, this compilation does not show the text of the compiled law as modified. For more information on any modifications, see the Register for the compiled law.

Self-repealing provisions

If a provision of the compiled law has been repealed in accordance with a provision of the law, details are included in the endnotes.

Contents

Part 1—Preliminary	1
1 Short title	1
2 Commencement	1
3 Definitions	1
Part 2—Provisions related to the establishment of the Australian Capital Territory Government Service	3
4 Effect of earlier staffing action	3
5 Certain persons cease to be members of the Australian Public Service	3
8 Transfer of personnel files	4
9 Operation of Part IV of the Public Service Act in relation to certain staff	5
10 Arrangements relating to staffing	6
Part 5—Miscellaneous	7
25 Leave entitlements	7
26 Transitional provision: Leave payments	7
Endnotes	9
Endnote 1—About the endnotes	9
Endnote 2—Abbreviation key	11
Endnote 3—Legislation history	12
Endnote 4—Amendment history	14

An Act to make provision consequential on the establishment of the Australian Capital Territory Government Service, and for related purposes

Part 1—Preliminary

1 Short title

This Act may be cited as the *Australian Capital Territory Government Service (Consequential Provisions) Act 1994*.

2 Commencement

- (1) This Act commences on a day to be fixed by Proclamation.
- (2) If this Act does not commence under subsection (1) within 18 months after the day on which it receives the Royal Assent, this Act is repealed on the first day after the end of that period.

3 Definitions

- (1) In this Act, unless the contrary intention appears:

ACT Branch means the branch of the Australian Public Service referred to in subsection 21(2) of the *A.C.T. Self-Government (Consequential Provisions) Act 1988*.

ACT officer means a person who is an officer within the meaning of the *Public Sector Management Act 1994* of the Australian Capital Territory.

Public Service Act means the *Public Service Act 1922*.

transfer day means the day on which this Act commences.

Australian Capital Territory Government Service (Consequential Provisions) Act 1994 1

Part 1 Preliminary

Section 3

- (2) An expression used in the Public Service Act, when used in this Act, has the same meaning as in the Public Service Act.

Part 2—Provisions related to the establishment of the Australian Capital Territory Government Service

4 Effect of earlier staffing action

- (1) In this section, **1989 direction** means the direction given by the Public Service Commissioner on 9 June 1989 under subsection 33C(2) of the Public Service Act and relating to the inclusion of certain unattached officers in the ACT Branch.
- (2) The 1989 direction is to be taken to have had the effect of including in the ACT Branch the unattached officers to whom the direction was expressed to apply and to have so included those officers on 9 June 1989.
- (3) A person to whom this subsection applies is to be taken to have been, on 9 June 1989, included in the ACT Branch.
- (4) Subsection (3) applies to a person if:
 - (a) the person was, on 9 June 1989, an unattached officer; and
 - (b) the last office held by the person before that date was an office the duties of which related, wholly or substantially, to matters that, as at 9 June 1989, were dealt with by the ACT Branch.

5 Certain persons cease to be members of the Australian Public Service

- (1) On the transfer day, an officer of the Australian Public Service to whom this subsection applies ceases, by force of this section, to be an officer of the Australian Public Service.
- (2) Subsection (1) applies to the following officers:

Section 8

- (a) an officer who holds an office included in the ACT Branch, whether or not the officer was performing the duties of that office immediately before the transfer day;
 - (b) an officer to whom Division 2 of Part IV of the Public Service Act applies and who is included in the ACT Branch;
 - (c) an officer to whom the repealed *Officers' Rights Declaration Act 1928* applies by virtue of section 87TA of the Public Service Act and who is included in the ACT Branch;
 - (d) an unattached officer, other than an officer referred to in paragraph (b) or (c), who is included in the ACT Branch.
- (3) On the transfer day:
- (a) a person employed under Division 10 of Part III of the Public Service Act to perform duties in the ACT Branch ceases, by force of this subsection, to be so employed; and
 - (b) a person otherwise employed by the Commonwealth to perform duties in the ACT Branch ceases, by force of this subsection, to be so employed.
- (4) Subsection (3) applies to a person whether or not the person was actually performing duties in the ACT Branch immediately before the transfer day.

8 Transfer of personnel files

- (1) This section applies where before the commencement of the *Public Service Act 1999*:
- (a) a person ceases to be an officer of the Australian Public Service and becomes an ACT officer; or
 - (b) a person ceases to be an ACT officer and becomes an officer of the Australian Public Service.
- (2) In a case referred to in paragraph (1)(a), the relevant Secretary or Agency Head (within the meaning of the *Public Service Act 1999*) may deliver to the appropriate authority of the Australian Capital Territory all records kept by the Secretary or Agency Head in relation to the person and reasonably necessary to be so delivered

Section 9

in connection with the employment of the person as an ACT officer.

- (3) In a case referred to in paragraph (1)(b), records kept, in relation to the person, for the purposes of the Australian Capital Territory Government Service may be delivered to the relevant Secretary or Agency Head (within the meaning of the *Public Service Act 1999*) if it is reasonably necessary for the records to be so delivered in connection with the employment of the person as an officer of the Australian Public Service.
- (4) Personal information contained in records delivered to an authority under subsection (2) may be used as if the information had been collected by the authority for the purposes of the Australian Capital Territory Government Service.
- (5) Personal information contained in records delivered to a Secretary or Agency Head under subsection (3) may be used as if the information had been collected by the Secretary for the purposes of the Australian Public Service.

9 Operation of Part IV of the Public Service Act in relation to certain staff

- (1) If, but for this subsection, an officer to whom subsection 5(1) applies would have been, on the transfer day, an officer to whom a provision of Part IV of the Public Service Act applied:
 - (a) Part IV of that Act ceases, on the transfer day, to have any application to the officer; and
 - (b) in the case of an officer to whom a provision of Division 4 of Part IV of that Act would have applied, the repealed *Officers' Rights Declaration Act 1928* ceases, on the transfer day, to have any application to the officer.
- (2) If:

Section 10

- (a) but for this subsection, Division 3 of Part IV of the Public Service Act would have applied to a person on the transfer day; and
 - (b) the Department in which the person last held an office before that day was the ACT Branch;

the person ceases, on the transfer day, to be a person to whom Division 3 of Part IV of the Public Service Act applies.
- (3) If:
 - (a) but for this subsection, Division 3 of Part IV of the Public Service Act would have applied to a person on the transfer day; and
 - (b) the last office held by that person before that day was an office the duties of which related, wholly or substantially, to matters that, as at the transfer day, were dealt with by the ACT Branch;

the person ceases, on the transfer day, to be a person to whom Division 3 of Part IV of the Public Service Act applies.
- (4) To the extent that they prescribe Calvary Hospital A.C.T. Incorporated for the purposes of paragraph (d) of the definition of **public authority** in subsection 87(1) of the Public Service Act, regulations under that Act cease to have effect on the transfer day.

10 Arrangements relating to staffing

An Agency Head (within the meaning of the *Public Service Act 1999*) may arrange with an appropriate authority of the Australian Capital Territory:

- (a) for the services of officers or employees in the Agency (within the meaning of that Act) to be made available to the authority; or
- (b) for the services of officers or employees of the Australian Capital Territory Government Service to be made available to the Agency Head.

Part 5—Miscellaneous

25 Leave entitlements

- (1) This section applies to a person who is engaged under section 22 of the *Public Service Act 1999*.
- (3) If, immediately before a person to whom this section applies ceases to be an ACT officer, the person has an entitlement, as such an officer, to leave of absence for recreation, the person retains that entitlement, on engagement as an APS employee, as if the entitlement had accrued under the *Public Service Act 1999*.
- (4) The *Public Service Act 1999* has effect, in relation to the accrual, on and after the engagement of a person as an APS employee, of the person's entitlement to leave of absence for recreation in relation to a period since the person last gained an entitlement, as an ACT officer, to leave of absence for recreation as if service by the person as an ACT officer during that period had been service as an APS employee.
- (5) If, immediately before the engagement of a person as an APS employee, the person has an entitlement, as an ACT officer, to be paid a recreation leave loading, the person retains the entitlement as if the entitlement had accrued under the APS Award 1998, but the entitlement is subject to the provisions of that award as if it had arisen under that award.
- (6) The reference in subsection (5) to a recreation leave loading is a reference to a payment that corresponds, or substantially corresponds, to a payment under the APS Award 1998.

26 Transitional provision: Leave payments

- (1) If, but for this section:
 - (a) an amount would become due to a person:

Section 26

- (i) under the Public Service Act, or under regulations or a determination made under that Act, in lieu of leave of absence for recreation or in any other way in relation to any entitlement of the person to such leave of absence; or
 - (ii) under the *Long Service Leave (Commonwealth Employees) Act 1976*; and
 - (b) the amount would become due solely because of the operation of section 5 of this Act in relation to the person; the amount does not become due.
- (2) If, but for this section:
- (a) an amount would become due to a person:
 - (i) under the *Public Service Act 1999*, or under regulations or a determination made under that Act, in lieu of leave of absence for recreation or in any other way in relation to any entitlement of the person to such leave of absence; or
 - (ii) under the *Long Service Leave (Commonwealth Employees) Act 1976*; and
 - (b) the amount would become due solely because of the resignation of the person from the Australian Public Service for the purpose of his or her being appointed to the Australian Capital Territory Government Service; the amount does not become due on the person's resignation from the Australian Public Service.
- (3) This section has effect in spite of any provision of:
- (a) the *Long Service Leave (Commonwealth Employees) Act 1976*; or
 - (b) the *Public Service Act 1922* or the *Public Service Act 1999*; or
 - (c) any regulations or determination made under either of those Acts.

Endnote 1—About the endnotes

Endnotes**Endnote 1—About the endnotes**

The endnotes provide information about this compilation and the compiled law.

The following endnotes are included in every compilation:

Endnote 1—About the endnotes

Endnote 2—Abbreviation key

Endnote 3—Legislation history

Endnote 4—Amendment history

Abbreviation key—Endnote 2

The abbreviation key sets out abbreviations that may be used in the endnotes.

Legislation history and amendment history—Endnotes 3 and 4

Amending laws are annotated in the legislation history and amendment history.

The legislation history in endnote 3 provides information about each law that has amended (or will amend) the compiled law. The information includes commencement details for amending laws and details of any application, saving or transitional provisions that are not included in this compilation.

The amendment history in endnote 4 provides information about amendments at the provision (generally section or equivalent) level. It also includes information about any provision of the compiled law that has been repealed in accordance with a provision of the law.

Editorial changes

The *Legislation Act 2003* authorises First Parliamentary Counsel to make editorial and presentational changes to a compiled law in preparing a compilation of the law for registration. The changes must not change the effect of the law. Editorial changes take effect from the compilation registration date.

If the compilation includes editorial changes, the endnotes include a brief outline of the changes in general terms. Full details of any changes can be obtained from the Office of Parliamentary Counsel.

Endnotes

Endnote 1—About the endnotes

Misdescribed amendments

A misdescribed amendment is an amendment that does not accurately describe how an amendment is to be made. If, despite the misdescription, the amendment can be given effect as intended, then the misdescribed amendment can be incorporated through an editorial change made under section 15V of the *Legislation Act 2003*.

If a misdescribed amendment cannot be given effect as intended, the amendment is not incorporated and “(md not incorp)” is added to the amendment history.

Endnote 2—Abbreviation key

Endnote 2—Abbreviation key

ad = added or inserted	o = order(s)
am = amended	Ord = Ordinance
amdt = amendment	orig = original
c = clause(s)	par = paragraph(s)/subparagraph(s) /sub-subparagraph(s)
C[x] = Compilation No. x	pres = present
Ch = Chapter(s)	prev = previous
def = definition(s)	(prev...) = previously
Dict = Dictionary	Pt = Part(s)
disallowed = disallowed by Parliament	r = regulation(s)/rule(s)
Div = Division(s)	reloc = relocated
ed = editorial change	renum = renumbered
exp = expires/expired or ceases/ceased to have effect	rep = repealed
F = Federal Register of Legislation	rs = repealed and substituted
gaz = gazette	s = section(s)/subsection(s)
LA = <i>Legislation Act 2003</i>	Sch = Schedule(s)
LIA = <i>Legislative Instruments Act 2003</i>	Sdiv = Subdivision(s)
(md) = misdescribed amendment can be given effect	SLI = Select Legislative Instrument
(md not incorp) = misdescribed amendment cannot be given effect	SR = Statutory Rules
mod = modified/modification	Sub-Ch = Sub-Chapter(s)
No. = Number(s)	SubPt = Subpart(s)
	<u>underlining</u> = whole or part not commenced or to be commenced

Endnotes

Endnote 3—Legislation history

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Australian Capital Territory Government Service (Consequential Provisions) Act 1994	92, 1994	29 June 1994	1 July 1994 (s 2(1) and gaz 1994, No S256)	
Employment Services (Consequential Amendments) Act 1994	177, 1994	19 Dec 1994	s 26: 1 Jan 1995 (s 2(3))	—
Australian Capital Territory Government Service (Consequential Provisions) Amendment Act 1996	46, 1996	25 Oct 1996	25 Oct 1996 (s 2)	—
Public Employment (Consequential and Transitional) Amendment Act 1999	146, 1999	11 Nov 1999	Sch 1 (items 117–140): 5 Dec 1999 (s 2(1), (2))	—
Territories Law Reform Act 2010	139, 2010	10 Dec 2010	Sch 1 (item 243): 1 Jan 2011 (s 2(1) item 10)	—
Acts Interpretation Amendment Act 2011	46, 2011	27 June 2011	Sch 2 (item 119) and Sch 3 (items 10, 11): 27 Dec 2011 (s 2(1) items 3, 12)	Sch 3 (items 10, 11)
Statute Law Amendment (Prescribed Forms and Other Updates) Act 2023	74, 2023	20 Sept 2023	Sch 5 (items 7–9): 18 Oct 2023 (s 2(1) item 3)	—

Endnote 3—Legislation history

Name	FRLI registration or gazettal	Commencement	Application, saving and transitional provisions
Public Employment (Consequential and Transitional) Regulations 1999 (SR No. 301, 1999)	4 Dec 1999	Sch 1 (Pt 2): 5 Dec 1999 (r 1.2)	—
as amended by			
Public Employment (Consequential and Transitional) Amendment Regulations 2000 (No. 1) (SR No. 332, 2000)	8 Dec 2000	Sch 1 (item 2): 5 Dec 1999 (r 2(a))	—

Endnotes

Endnote 4—Amendment history

Endnote 4—Amendment history

Provision affected	How affected
Part 1	
s 3	am No 146, 1999
Part 2	
s 6	rep No 146, 1999
s 7	rep No 146, 1999
s 8	am No 146, 1999
s 10	am No 146, 1999
Part 3	rep No 146, 1999
s 11	rep No 146, 1999
Part 4	rep No 74, 2023
s 12	rep No 74, 2023
s 13	rep No 74, 2023
s 14	rep No 74, 2023
s 15	rep No 74, 2023
s 16	rep No 74, 2023
s 17	rep No 74, 2023
s 18	rep No 74, 2023
s 19	rep No 74, 2023
s 20	rep No 74, 2023
s 21	rep No 74, 2023
Part 5	
s 22	rep No 74, 2023
s 23	am No 139, 2010; No 46, 2011 rep No 74, 2023
s 24	rep No 146, 1999
s 25	am No 146, 1999; SR No 301, 1999 (as am by SR No 332, 2000)
s 26	am No 146, 1999

Endnote 4—Amendment history

Provision affected	How affected
s 27	am No 46, 1996 rep No 74, 2023
Schedule 1	rep No 74, 2023
Schedule 2	rep No 74, 2023
Schedule 3	am No 177, 1994 rep No 74, 2023